

Tentative Rulings for Department 502

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Tentative Ruling

Re: **Gregory Squires v. General Motors, LLC**
Superior Court Case No. 25CECG01142

Hearing Date: September 10, 2026 (Dept. 502)

Motion: by Plaintiff for Attorney's Fees

Tentative Ruling:

To grant an award of attorney's fees in the reduced amount of \$15,568.93. Payment shall be made by defendant General Motors, LLC. to The Barry Law Firm within 30 days of the clerk's service of the minute order.

Explanation:

Under Civil Code section 1794 subdivision (d), if a buyer prevails in an action under the Song Beverly Act, the buyer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of the action." (Civ. Code, § 1794, subd. (d).) Here, defendant General Motors, LLC ("defendant") and plaintiffs Gregory Squires and Robin Squires ("plaintiffs") have agreed that plaintiffs are the prevailing party for purposes of a fees motion. (See Barry Decl., ¶ 13, Exh. 3, ¶ 1(c)(ii).)

Calculating the Fees

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) In determining the reasonable amount to award, "the court should consider ... 'the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded [citation]; the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.'" (*Ibid.*) An award of costs must be "reasonably necessary to the conduct of the litigation" and shall be "reasonable in amount." (Code Civ. Proc., § 1033.5 subd. (c)(2), (c)(3).) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

Reasonable Time Expended

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the "careful compilation of the time spent and reasonable

hourly compensation of each attorney . . . involved in the presentation of the case." (*Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiffs claim a total of 39.7 billable hours. A printout of the billing entries is provided. (See Barry Decl., ¶ 17, Exh. 4.) The court considers defendant's challenges to the billing entries.

As an initial matter, plaintiffs voluntarily withdraw 6.4 hours allocated to the Motion to Tax Costs that was not filed.

The hours allocated to initial disclosures and the PMQ deposition will not be reduced. Attorney's fees are awarded for that which is reasonably necessary to conduct the litigation. After review of the time entries, these appear to be reasonably billed. Defendant has not demonstrated that the time spent on these activities does not meet the reasonableness standard or are otherwise not recoverable merely because they are common to this type of litigation.

With respect to the present fees motion, the court agrees a discount is warranted. The court will reduce the hours for this motion from 17.2 hours to 6 hours. Specifically, while travel time may generally be recoverable, it is still subject to the reasonableness standard. Here, it is not supported that the 8.5 hours of anticipated attorney travel time and appearance at the hearing is reasonable or necessary (i.e. consider the alternative of remote appearance, if appearing at all). Further, the total hours of review and preparation will be reduced.

Defendant has not established that the February 7, 2025 and February 20, 2025 billing entries are "potential client" work or "intake" related. Even should these items be considered as "pre-engagement work," no authority has been provided that work conducted for the client is not recoverable merely due to the stage at which it was performed. The statute allows for fees "reasonably incurred by the buyer in connection with the commencement and prosecution of the action." (Civ. Code, § 1794, subd. (d).) Neither has it been established that the client communications billed were unreasonable or that one attorney instead of another should have conducted such communications. No deductions will be made here.

The overall billable hours will be reduced by 17.6, from 39.7 to 22.1 hours.

Reasonable Hourly Compensation

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.)

The hourly rates of the attorneys within The Barry Law Firm reflect only a modest increase from those of the local plaintiffs' bar. Further, they were not challenged by defendant. The rates appear reasonable and will not be reduced.

Multiplier

A multiplier enhancement to the lodestar "is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class." (*Ketchum, supra*, 24 Cal.4th at p. 1138.) A multiplier may also be applied where the attorney has shown extraordinary skill, resulting in exceptional results. (*Ibid.*; *Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 582.) Courts have substantial discretion to select the factors they deem relevant to their multiplier analysis. (*Lealao v. Beneficial California, Inc.* (2000) 82 Cal.App.4th 19, 40–41.) The factors include: (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 819.)

Plaintiffs seek a 0.1 lodestar multiplier. The contingent nature of this action supports allowing for the multiplier as requested.

Lodestar and Total Award of Fees

Having reviewed the hourly rates and the hours billed by each attorney, the lodestar is set at \$12,662.50. A multiplier is granted awarding an additional \$1,266.25. An award of attorney's fees is granted in the amount of \$13,928.75.

Costs

In Song-Beverly Act cases, Civil Code section 1794, subdivision (d), provides for an award of not only "costs", but also "expenses" to the prevailing buyer if the costs and expenses were reasonably incurred in the commencement and prosecution of the action. Courts have interpreted the term "expenses" to mean that the trial court has discretion to award more than just the costs provided under section 1033.5, and that the court may grant other costs that were reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138, [finding trial court should not have denied plaintiff's request for expert witness fees simply because they were not permitted under section 1033.5]; disapproved on other grounds by *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189.)

If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. (*Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338.) The losing party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence to prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) If the claimed items are not expressly allowed by statute

and are objected to by a motion to tax costs, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

A verified memorandum of costs with what appear to be proper charges was filed by plaintiffs. The memorandum is therefore prima facie evidence of their propriety. Defendant has not demonstrated the challenged costs are not recoverable.

Jury fees are statutorily recoverable. (Code Civ. Proc., § 1033.5, subd. (a)(1).) The fact that the case settled and no jury trial went forward does not change the nature of this expense. The cost is allowed.

Fees for the electronic filing or service of documents through an electronic filing service provider are recoverable if a court requires or orders electronic filing or service of documents. (Code Civ. Proc., § 1033.5, subd. (a)(14) Here, electronic filing is required by the court. The cost is allowed.

As for the mediation fees included in the memorandum of costs, it is defendant's burden to prove they are unrecoverable, which it has not proven here.

All costs as requested in the memorandum of costs are allowed in the amount of \$1,640.18.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 9-8-26
(Judge's initials) (Date)